Dated 5th October 1908

(9)

The Bank of England

and

Hugh Colin Smith Esq.

LAND REGISTRY
LONDON No. [illegible]
REGISTD 13 AUG 1920

Agreement

as to
user of drain.

Wnt

Examined
Edwin Freshfield
LLD
2 Sept 1908.

5 OCT 1908

By

of the said date

An Agreement

made the fifth day of October One thousand nine hundred and eight **Between** The Governor and Company of the Bank of England (hereinafter called "the Bank") of the one part and Hugh Colin Smith of Mount Clare Roehampton in the County of Surrey Esquire of the other part **Whereas** the Bank are seised in fee simple in possession of the land situate at Roehampton aforesaid which is delineated on the plan drawn hereon and thereon coloured pink **And whereas** the said Hugh Colin Smith is seised in fee simple in possession of the land also situate at Roehampton aforesaid which is delineated on the said plan and thereon coloured yellow **And whereas** the Bank have laid a drain in and under the land of the Bank in the position indicated by dotted blue lines on the said plan for the purpose of carrying off rain and other water from their said land and from the buildings to be erected thereon **And whereas** the said Hugh Colin Smith is desirous of running the surface water from his said land coloured yellow into and through the said drain **Now therefore it is hereby agreed** as follows that is to say:-

pink by H C Smith of land cold yellow

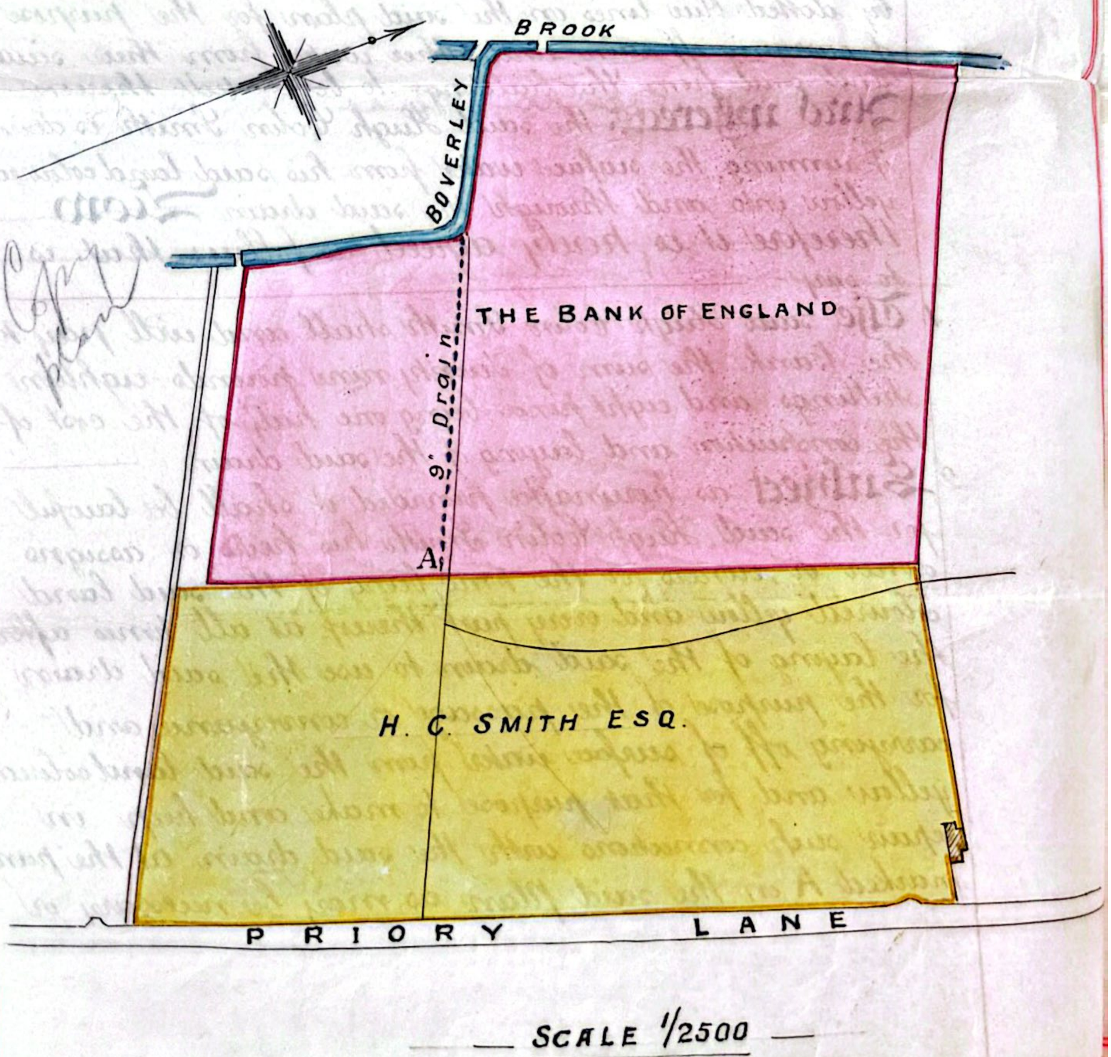
1 **The** said Hugh Colin Smith shall and will pay to the Bank the sum of Twenty nine pounds eighteen shillings and eight pence being one half of the cost of the construction and laying of the said drain

2 **Subject** as hereinafter provided it shall be lawful for the said Hugh Colin Smith his heirs or assigns owner or owners for the time being of the said land coloured yellow and every part thereof at all times after the laying of the said drain to use the said drain for the purpose of the passage or conveyance and carrying off of surface water from the said land colored yellow and for that purpose to make and keep in repair such connections with the said drain at the point marked A on the said plan as may might be necessary or

proper making good nevertheless at his or their own expense all damage or disturbance caused to any part of the surface of the land coloured pink by the making or repairing of such connections and so that the making of the payment hereinbefore agreed to be made by the said Hugh Colin Smith shall be a condition precedent to the making of any such connection

Proviso

Provided always and it is hereby declared that if the Bank shall at any time hereafter desire to remove or alter the position of the said drain in order better to utilize the said land coloured pink or any part thereof or for any other sufficient reason and shall give to the said Hugh Colin Smith his heirs or assigns owner or owners as aforesaid three calendar months notice in writing of such their desire then the said Hugh Colin Smith his heirs or assigns



Copy plan

owner or owners as aforesaid shall prior to the expiration of such three calendar months remove the said connections and upon the expiration of such three calendar months his or their right to use the said drain for the purpose of the passage or conveyance of surface water shall absolutely cease and determine **Provided also** and it is hereby further declared that if the right of the said Hugh Colin Smith his heirs or assigns to use the said drain shall be determined as hereinbefore provided within three years from the payment by the said Hugh Colin Smith to the Bank of one half of the cost of the construction and laying of the said drain the amount so paid by the said Hugh Colin Smith to the Bank shall immediately upon such determination be repaid by the Bank to the said Hugh Colin Smith **Provided also** and it is hereby further declared that if the right of the said Hugh Colin Smith his heirs or assigns to use the said drain shall be determined as hereinbefore provided or if for any reason whatever the said Hugh Colin Smith his heirs or assigns shall cease to use the said drain for the purpose of the conveyance or passage of surface water from the said land coloured yellow on the said plan then the said Hugh Colin Smith his heirs or assigns shall within three calendar months after his or their right shall be determined as aforesaid or after the date when he or they shall cease to use the said drain as aforesaid (whichever event shall first happen) at his or their own expense provide on his or their own land and for ever thereafter maintain some other reasonably sufficient means of carrying away the surface water coming in defined channels from the said land coloured yellow on the said plan so as to prevent the same (unless under exceptional circumstances) from draining or coming in such defined channels upon the land coloured pink on the said plan or any part thereof

In witness whereof the Bank have caused their Common Seal to be hereunto affixed and the said Hugh Colin Smith hath hereunto set his hand and seal the day and year first above written

Sealed by Order of the Court
of Directors of the Governor and
Company of the Bank of England
in the presence of

Sealed by the Bank

Fred Huth Jackson

Brien Cokayne

M C Norman.

Charles Edlmann
Secretary
Bank of England.